

Bansidhar Dubey v. State of U.P.

High Court of Judicature at Allahabad · Division Bench · 8 March 2019 · Writ-C No. 8034 of 2019 · Writ - C No. 8034 of 2019 · **Writ petition dismissed on the ground of alternative remedy.**

HEADNOTE

Writ on payment of electricity dues dismissed: petitioner has a statutory alternative remedy before the Consumer Grievance Redressal Forum under para 7.10(i) of the Electricity Supply Code, 2005 read with the UPERC (Consumer Grievance Redressal Forum & Ombudsman) Regulations, 2003, and thereafter before the Ombudsman under para 7.10(iv); counsel did not dispute that route and could not show why the petitioner should not be relegated to it.

FACTUAL SUMMARY

Bansidhar Dubey filed Writ-C No. 8034 of 2019 in the Allahabad High Court against the State of U.P. and two others over payment of electricity dues. After some argument, his counsel did not dispute a statutory alternative remedy before the Consumer Grievance Redressal Forum under the Electricity Supply Code, 2005, read with the UPERC CGRF and Ombudsman Regulations, 2003, and thereafter before the Ombudsman. Counsel could not show why the petitioner should not be relegated to those forums.

HOLDING-UNITS

HOLDING-UNIT · UP-2005::7.10(i)

alternative-remedy-cgrf-electricity-dues

HOLDING

A writ petition raising a grievance in respect of payment of electricity dues is dismissed on the ground of alternative remedy where the petitioner has a statutory remedy before the Consumer Grievance Redressal Forum under para 7.10(i) of the Electricity Supply Code, 2005 read with the UPERC (Consumer Grievance Redressal Forum & Ombudsman) Regulations, 2003, and counsel does not substantiate any ground against relegation. ¶ 2-3

HOLDING-UNIT · UP-2005::7.10(iv)

alternative-remedy-ombudsman-after-cgrf

HOLDING

After the Consumer Grievance Redressal Forum, the statutory alternative remedy for a grievance in respect of payment of electricity dues continues before the Ombudsman under para 7.10(iv) of the Electricity Supply Code, 2005 read with the UPERC (Consumer Grievance Redressal Forum & Ombudsman) Regulations, 2003.

¶ 2-3

PRINCIPLE TAGS

cgrf-ombudsman-alternative-remedy

Writ on electricity dues dismissed: counsel did not dispute, and could not substantiate any ground against, relegation to CGRF under para 7.10(i) and thereafter the Ombudsman under para 7.10(iv), read with the 2003 Regulations. ¶ 2-3

NOT DECIDED — NEGATIVE AUTHORITY

NOT DECIDED — MERITS OF THE PETITIONER'S GRIEVANCE IN RESPECT OF PAYMENT OF ELECTRICITY DUES

Writ dismissed solely on alternative remedy; no finding on the dues claim. ¶ 2-3

